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Case Number: 25STCV06919 Hearing Date: September 24, 2026 Dept: 14

SUPERIOR COURT OF THE STATE OF
CALIFORNIA,

FOR THE COUNTY OF LOS ANGELES

..

DEPARTMENT 14,

,

WILLIAM DONCHIG and PERLITA DONCHIG

,

Plaintiffs,

v.

,

A.W. CHESTERTON COMPANY et al.,

Defendants.

Case No. 25STCV06919

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Hearing Date: September 24, 2026

Time:

9:00 a.m.

¿ [TENTATIVE] ORDER

RE:¿

DEFENDANT TATE ANDALE, LLC'S MOTION FOR  
SUMMARY ADJUDICATION

I.

Background

On March 11, 2025,  
Plaintiffs William and Perlita Donchig ("Plaintiffs") filed  
their complaint for personal injury alleging that Mr. Donchig developed mesothelioma  
from exposure to asbestos and  
asbestos-containing talc from approximately 1950 to the  
2000s in ceramics, talc products, automotive products, and service on  
various naval vessels and work in naval shipyards. As to Defendant Tate  
Andale, LLC ("Tate Andale"), Plaintiffs allege that Mr. Donchig was exposed to  
Tate Andale strainers, separators, and valves he used on marine propulsion  
equipment during his time working on ships. (UMF No. 4.)

On June 15, 2026, Tate Andale moved for summary  
adjudication of the causes of action for false representation and intentional  
tort/intentional failure to warn ("concealment"), and Plaintiffs' demand for  
punitive damages. Tate Andale argues that Plaintiffs lack and cannot reasonably  
obtain evidence to support these causes of action or the demand for punitive  
damages.

On September 4, 2026, Plaintiffs opposed, arguing that Tate  
Andale failed to shift its burden on summary adjudication. Plaintiffs also  
argue that triable issues of material fact remain as to the fraud-based causes  
of action and the demand for punitive damages.

On September 11, 2026, Tate Andale replied, reiterating  
arguments from the moving papers.

Tate Andale meets its burden to prove that Plaintiffs lack and cannot reasonably obtain evidence to support their claims for false representation and fraudulent concealment and their demand for punitive damages. Plaintiffs fail to present affirmative evidence to support the fraud-based causes of action. Plaintiffs presented sufficient affirmative evidence to support their demand for punitive damages. Tate Andale's motion for summary adjudication is granted as to the causes of action for false representation and concealment. The motion is denied as to the demand for punitive damages.

## II.

### Discussion

#### A.

##### Legal Standard

A defendant seeking summary judgment must “conclusively negate[] a necessary element of the plaintiff’s case, or . . . demonstrate[] that under no hypothesis is there a material issue of fact that requires the process of trial.” (Guz v. Bechtel Nat. Inc. (2000) 24 Cal.4th 317, 334.) To show that a plaintiff cannot establish an element of a cause of action, a defendant must make the initial showing “that the plaintiff does not possess, and cannot reasonably obtain, needed evidence.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 854.) “The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff’s cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence – as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing.” (Id. at p. 855.) “ ‘If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations, or simply provide laundry lists of people and/or documents, the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiff’s factually devoid discovery responses.’ ” (Weber v. John Crane, Inc. (2006) 143 Cal.App.4th 1433, 1440.)

#### B.

## Fraud-Based Causes of Action

### False

representation under Restatement of Torts section 402B establishes “liability for injuries caused by justifiable reliance on false advertising.” (Westlye v. Look Sports, Inc. (1993) 17 Cal.App.4th 1715, 1750.) Under this section “ [o]ne engaged in the business of selling chattels who, by advertising, labels, or otherwise, makes to the public a misrepresentation of a material fact concerning the character or quality of a chattel sold by him is subject to liability for physical harm to a consumer of the chattel caused by justifiable reliance upon the misrepresentation, even though [¶] (a) it is not made fraudulently or negligently, and [¶] (b) the consumer has not bought the chattel from or entered into any contractual relation with the seller.’ [Citation.]” (Id. at pp. 1750-1751.) “The rule ‘is one of strict liability for physical harm to the consumer, resulting from a misrepresentation of the character or quality of the chattel sold, even though the misrepresentation is an innocent one, and not made fraudulently or negligently.’ [Citation.]” (Hauter v. Zogarts (1975) 14 Cal.3d 104, 114.) Under section 402-B, the “reliance need not necessarily be that of the consumer who is injured. It may be that of the ultimate purchaser of the chattel . . . who because of such reliance passes it on to the consumer who is in fact injured, but is ignorant of the misrepresentation.’ [Citation.]” (Westlye, supra, 17 Cal.App.4th at p. 1751.)

### The elements

of a cause of action for fraudulent concealment or fraud by non-disclosure are: “(1) the defendant concealed or suppressed a material fact; (2) the defendant was under a duty to disclose the fact to the plaintiff; (3) the defendant intentionally concealed or suppressed the fact with the intent to defraud the plaintiff; (4) the plaintiff was unaware of the fact and would not have acted as they did if they had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff sustained damage.” (Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 310-311, citing Kaldenbach v. Mutual of Omaha Life Ins. Co. (2009) 178 Cal.App.4th 830, 850.)

### Element two,

sometimes referred to as the special relationship requirement, means that there are four circumstances which can give rise to actionable fraud

by non-disclosure or concealment: “ ‘(1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts. [Citation.]’ ” (LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 336.) In the absence of a fiduciary relationship between a plaintiff and a defendant, “As a matter of common sense, such a relationship can only come into being as a result of some sort of transaction between the parties.” (Id. at p. 337.) Unlike products liability, where there is a “general principle that a manufacturer has a duty to warn consumers of a product’s hazards and faults,” a duty to disclose material facts arises in the fraud context “only where there is already a sufficient relationship or transaction between the parties.” (Bigler-Engler, supra, 7 Cal.App.5th at p.312.)

i. Defendant’s Burden: Factually Devoid

Tate

Andale meets its initial burden to prove that Plaintiffs lack and cannot reasonably obtain evidence to support their fraud-based causes of action. Tate Andale argues that (1) Plaintiffs lack and cannot reasonably obtain evidence that Tate Andale made representations to Mr. Donchig regarding the safety of its products or relied on any misrepresentation and (2) Plaintiffs lack and cannot reasonably obtain evidence that a fiduciary or confidential relationship existed between Mr. Donchig and Tate Andale. (Motion at pp.10-11 [“Plaintiffs’ causes of action for False Representation, Intentional Failure to Warn and Concealment fail because Plaintiffs have not established that Plaintiff ever had any communication with Tate Andale, purchased any Tate Andale product, read any material from Tate Andale, heard any statements by Tate Andale or relied on any statement by Tate Andale... Finally, since Plaintiff is contending that Tate Andale fraudulently concealed a material fact from him, Plaintiff must show that there is an existence of a fiduciary or confidential relationship with Tate Andale.”].) Tate Andale relies on Mr. Donchig’s deposition testimony and Plaintiffs’ responses to written requests for discovery to support its motion.

In

opposition, Plaintiffs argue that Tate Andale failed to shift the burden on summary adjudication and that triable issues of material fact remain over whether Tate Andale knew of the hazards of its asbestos-containing products and

failed to warn end users of these hazards. (Opp. at pp. 3-6.)

When

Tate Andale asked Plaintiffs to state all facts which support their contention that Tate Andale is liable for false representation under the Restatement of Torts section 402B, Plaintiffs responded by incorporating their response to special interrogatory 1. (Romeo Decl., Exh. E at p. 8.) The response reads as follows:

"Mr. Donchig was exposed to asbestos from 1964 to 2000, approximately. During his work on ships, he worked with and in the presence of others working with asbestos-containing valves, including gaskets, packing, refractory and insulation from various equipment, including Tate Andale valves. Defendant's products required asbestos to function, and the design led to no suitable alternatives to asbestos until at least the 1980s.

At the time he was working with these products there were no warnings, written instructions, nor recommendations regarding the hazards of asbestos on the products or packaging. As a result, Plaintiff was unaware of his need for any type of safety devices to specifically reduce his possible exposure to, or inhalation of, asbestos from the aforementioned asbestos-containing products...

Plaintiffs claim

defendants' products are defectively designed in that the products released respirable asbestos fibers when used or misused in a way that was reasonably foreseeable to defendants. Defendants designed their products to incorporate and/or operate with asbestos or asbestos-containing materials and the design of Defendants' products required Plaintiff or others in his vicinity to disturb asbestos or asbestos-containing materials, causing the release of respirable asbestos fibers which Plaintiff breathed. Ordinary users of Defendants' products did not reasonably expect that use of Defendants' products would result in serious bodily injury and/or death. At the time, Plaintiff and others in his immediate vicinity used Defendants' products, the products were in substantially the same condition as when he left Defendants' possession, or any changes made to the product were reasonably foreseeable to Defendants."

(Romeo

Decl., Exh. E at pp. 2-3.) The response also identified Mr. Donchig, his

coworkers, and Tate Andale's corporate representatives and employees as witnesses supporting Plaintiffs' claims. (Id.)

At his deposition, Mr. Donchig testified that he had never spoken to any Tate Andale employee. (Romeo Decl., Exh. G at 924:11-15 ["Q: Did you ever speak to anyone who...was an employee of Andale? A: No, I never spoke to anybody that works for them, no. They...would have to go through the supply officer."].) Mr. Donchig did not have any written material from Tate Andale regarding the strainers and valves he worked with. (Id. at 918:9-17 ["Q: I'm assuming that you don't have any written material from Andale regarding strainers or valves; is that correct? A: That's—that's correct. Q: Okay. In order for you to remove and replace a gasket on any Andale strainer or valve, you didn't have to read any manuals to learn how to do that. Is that true? A: Yes."].) Mr. Donchig recalled that he sometimes used a manual when working with Tate Andale strainers. (Id. at 924:2-9 ["A:...Sometimes they give you a manual. But normally I didn't use a manual...I worked on so many of them. Q: You didn't need the manual to know how to remove and replace a gasket on an Andale strainer – A: Right. Right. Once you do it once, you don't really need to read it again; but I do sometimes."].)

When asked whether he knew of any material misrepresentations Andale made to him, Mr. Donchig responded as follows: "A: Packing. For sure, packing. Let me think. Packing. Well, I think – I think all the manufacturers knew that it was harmful, but it took so long. Yeah. It took so long for it to – to have the – you would die before it kills you. That's – that's the theory of it, I think, myself. Even though it's going to kill you, you'd usually die of natural causes before it did kill you. Well, sir, I've outlived that part. I'm 82 years old, and my doctor told me what it was and how long I have to live. And they're well familiar with it today. They weren't back in them days. Nobody knew. So that's the best thing I – the best I could say. But I'm sure they knew that asbestos is going to kill you, whether you outlive it or not." (Romeo Decl., Exh. G at 932:4-22.) Tate Andale's counsel moved to strike the unresponsive and speculative portions of Mr. Donchig's response. (Id. at 932:23-24.) For purposes of this motion, Tate Andale's motion to strike is granted.

False  
Representation

Plaintiffs' interrogatory responses are

devoid of facts establishing what misrepresentations Tate Andale made to Mr. Donchig. (Romeo Decl., Exh. E at pp. 2-3.) Additionally, Mr. Donchig testified at his deposition that he never spoke to any Tate Andale employees. (Romeo Decl., Exh. G at 924:11-15.) While Mr. Donchig testified that he believes manufacturers like Tate Andale knew of the health hazards of asbestos, this testimony is speculative because Mr. Donchig does not have personal knowledge of what Tate Andale knew about the health effects of asbestos. (Id., Exh. G at 932:4-24.) Additionally, Mr. Donchig fails to state that Tate Andale made any affirmative misrepresentation upon which he relied.

Although

Plaintiffs cite *Lazar v. Superior Court* (1996) 12 Cal.4th 631 for the proposition that misrepresentations include nondisclosures and concealment, the language Plaintiffs quote from the case states that an action for fraud may be supported by nondisclosure as well as an affirmative misrepresentation. (Opp. at p.5; *Lazar*, supra, 12 Cal.4th at p.631 [“His fraud is of a different type; it is ‘negative’ rather than ‘affirmative’ (*Barder v. McClung*, supra, 93 Cal.App.2d 692, 209 P.2d 808); but it is fraud nonetheless.”].) The case does not stand for the proposition that a nondisclosure is a misrepresentation, but that nondisclosures may support a cause of action for fraud. False representation is a different species of fraud from concealment or nondisclosure because it arises from an affirmative misrepresentation, not a failure to disclose facts. (*Los Angeles Memorial Coliseum Com. v. Insomniac, Inc.* (2015) 233 Cal.App.4th 803, 831, citing *Lonely Maiden Productions, LLC v. Golden Tree Asset Management, LP* (2011) 201 Cal.App.4th 368 [“To allege fraud based on an affirmative misrepresentation, a plaintiff must allege a misrepresentation—normally an affirmation of fact.”].)

Here,

even if Mr. Donchig had personal knowledge of whether Tate Andale knew of the health hazards associated with asbestos, Plaintiffs' discovery responses failed to point to any affirmative misrepresentation Tate Andale made to Mr. Donchig. The discovery record is devoid of facts establishing that Tate Andale made any misrepresentation to Mr. Donchig. There are also no facts that he relied on any misrepresentations. Plaintiffs' factually devoid interrogatory responses and Mr. Donchig's deposition testimony support an inference that Plaintiffs lack and cannot reasonably obtain evidence to support the cause of action for false representation. Accordingly, Tate Andale meets its initial burden on summary adjudication as to the cause of action for false representation.

## Concealment

### Plaintiffs' interrogatory responses

are also devoid of facts establishing that a relationship existed between Mr. Donchig and Tate Andale giving a rise to a duty to disclose. (Romeo Decl., Exh. E at pp. 2-3.) Plaintiffs' discovery responses were required to show that Tate Andale had either a fiduciary relationship or a direct transactional relationship with Mr. Donchig giving rise to a duty to disclose. Plaintiffs' interrogatory responses are devoid of facts that such a fiduciary or transactional relationship existed. Additionally, Mr. Donchig testified that he never spoke to anyone from Tate Andale and that Tate Andale's representatives communicated with a supply officer. (Romeo Decl., Exh. G at 924:11-15.) In other words, Mr. Donchig had no contact with Tate Andale representatives and could not have formed a fiduciary or transactional relationship with the company. Plaintiffs' factually devoid interrogatory responses and Mr. Donchig's deposition testimony support an inference that Plaintiffs lack and cannot reasonably obtain evidence to support the cause of action for concealment. Accordingly, Tate Andale shifts the burden to Plaintiffs as to the cause of action for concealment.

### ii. Plaintiffs' Burden

In

opposition, Plaintiffs argue that the motion for summary adjudication of the cause of action for false representation should be denied because a misrepresentation includes nondisclosures and concealments. (Opp. at p.5.) Plaintiffs argue that Tate Andale failed to disclose the hazards of asbestos to end users like Mr. Donchig. Again, false representation is a species of fraud based on an affirmative misrepresentation. Plaintiffs fail to provide evidence that Tate Andale made such a misrepresentation to Mr. Donchig. Accordingly, Plaintiffs fail to meet their burden, and Tate Andale's motion for summary adjudication of the cause of action for false representation is granted.

As

for the cause of action for concealment, Plaintiffs argue that triable issues of material fact remain over whether Tate Andale knew its asbestos-containing products were hazardous to end users and failed to disclose this fact. (Opp. at p.6.) Plaintiffs argue in a conclusory manner that Tate Andale had "a duty to disclose the truth regarding the health hazards of the asbestos in its asbestos-containing products." (Id.) Plaintiffs rely on the transcript

of a deposition of Tate Andale's corporate representative taken in an unrelated matter, as well as Tate Andale's responses to standard interrogatories in this case, to show that Tate Andale knew of the hazards of asbestos between 1970 and 1975 and failed to place warnings on its products. (PUMF No. 11; Seitz Decl., Exh. 1.) However, this evidence does not show that a transactional or fiduciary relationship existed between Mr. Donchig and Tate Andale which gave rise to a duty to disclose. Accordingly, Plaintiffs failed to meet their burden on summary adjudication. Tate Andale's motion for summary adjudication of the cause of action for concealment is granted.

C.

#### Punitive Damages

i.

#### Legal Standard

When a motion for summary adjudication targets a request for punitive damages, a higher standard of proof is at play. "Although the clear and convincing evidentiary standard is a stringent one, 'it does not impose on a plaintiff the obligation to "prove" a case for punitive damages at summary judgment [or summary adjudication.]' [Citations.] Even so, 'where the plaintiff's ultimate burden of proof will be by clear and convincing evidence, the higher standard of proof must be taken into account in ruling on a motion for summary judgment or summary adjudication, since if a plaintiff is to prevail on a claim for punitive damages, it will be necessary that the evidence presented meet the higher evidentiary standard.' [Citation.]" (Butte Fire Cases (2018) 24 Cal.App.5th 1150, 11581159.) For a corporate defendant, the oppression, fraud or malice "must be on the part of an officer, director, or managing agent of the corporation." (Civ. Code, § 3294, subd. (b).) That requirement can be satisfied " 'if the evidence permits a clear and convincing inference that within the corporate hierarchy authorized persons acted despicably in "willful and conscious disregard of the rights or safety of others." ' [Citation.]" (Morgan v. J-M Manufacturing Company, Inc. (2021) 60 Cal.App.5th 1078, 1090 ("Morgan").) A plaintiff also "can satisfy the 'managing agent' requirement 'through evidence showing the information in the possession of the corporation and the structure of management decision making that permits an inference that the information in fact moved upward to a point where corporate policy was formulated.' [Citation.]" (Id. at p. 1091.)

ii.

#### Defendant's Burden: Factually Devoid

Tate Andale meets its initial burden to prove that Plaintiffs lack and cannot reasonably obtain evidence to support their demand for punitive damages. The demand may no longer be based on fraudulent conduct because the court granted Tate Andale's motion for summary adjudication of Plaintiffs' fraud-based causes of action. Tate Andale argues that Plaintiffs lack and cannot reasonably obtain evidence to support the demand for punitive damages because their discovery responses "failed to provide any facts, identify any witnesses, or identify any documents which indicate that Tate Andale, or any employee of Tate Andale, had any knowledge of the dangers related to the use of the asbestos-containing products it supplied, or that Tate Andale acted in reckless disregard of public safety with respect to the sale of such products." (Motion at p. 13.)

When Tate Andale asked Plaintiffs to state all facts which support their contention that Tate Andale is liable for punitive damages, Plaintiffs incorporated their response to special interrogatory number 1, the same response supporting the fraud-based causes of action. (Romeo Decl., Exh. E at p. 8.) The interrogatory response failed to set forth the factual basis for Plaintiffs' contention that Tate Andale knew of the health hazards associated with its asbestos-containing products and continued to sell them without warnings. While Mr. Donchig testified at his deposition that Tate Andale must have known of these hazards, the testimony is speculative because Mr. Donchig never spoke to Tate Andale employees and lacks personal knowledge of what Tate Andale knew about the hazards of its asbestos-containing products. (Romeo Decl., Exh. G at 932:4-24.) Plaintiffs' discovery responses are devoid of facts supporting the demand for punitive damages and support an inference that Plaintiffs lack and cannot reasonably obtain evidence to support the demand. Accordingly, Tate Andale meets its burden on summary adjudication.

iii.

#### Plaintiff's Burden

Plaintiffs provide the transcript from the deposition of William Tate taken in *Shane, et al. v. General Electric Company, Inc., et al.* in the Circuit Court of the First

Circuit, State of Hawaii, No. 15-1-0034-01 to show that Tate Andale knew of the hazards of its asbestos-containing products between 1970 and 1975 and failed to place warnings on these products. (Seitz Decl., Exh. 1.) Mr. Tate testified that Tate Andale became aware of the hazards of asbestos around 1970 to 1975. (Id. at 164:16-25 [“Q: Mr. Tate, we’ve talked at length about Tate Andale learning sometime in the 1970 to ‘75 time period that there were some potential problems associated with asbestos; correct? A: Correct. Q: And actually I read one of your former transcripts and you actually learned about some of the hazards of asbestos when you were in the Navy; correct? A: Correct.”].) Despite being aware of these hazards, Tate Andale failed to issue warnings to its workers or end users. (Id. at 169:1-15 [“Q: From 1970 to ‘75, in that time period when Tate Andale became aware of the potential problems with asbestos, Tate Andale from that time up to the present did not provide any warnings to its own workers; correct? A: That’s correct. Q: Did not provide any warnings to end users; correct? A: That’s correct. Q: Did not provide any warnings in its technical manuals? A: That’s correct. Q: And when I say any warnings, I mean about asbestos, you understood that? A: Yes.”].) Tate Andale’s insurer, Hartford, raised concerns about the risk of litigation over asbestos gaskets and advised Tate Andale to stop using them in its products. (Id. at 323:21-325:3 [“Q: You mentioned earlier that you were informed or you had a conversation with someone from Hartford that – and what was that conversation? A: That conversation was not a person from Hartford. It was an independent insurance agent...that in this case was representing Hartford...Q: Okay. And what did this representative ask you to do? A: He...said that Hartford was extremely concerned about the future of the...asbestos gaskets...And he said we should stop putting them in our—in our units...Q: All right. You mentioned that this led to a fear of litigation, right? A: Correct. Q: And that would be litigation from whom? A: It would be from individuals that were exposed to—to asbestos.”].)

#### Mr. Tate’s testimony

shows that Tate Andale knew of the health hazards of asbestos beginning around 1970-1975 and continued to sell its asbestos-containing products without warnings to end-users through at least 2016 when the deposition took place. (Seitz Decl., Exh. 1 at 164:16-25, 169:1-15.) Additionally, Tate Andale learned at some point that its insurer was concerned about the risk of litigation over Tate Andale’s asbestos gaskets. (Id. at 323:21-325:3.) This evidence supports a demand for punitive damages because it shows Tate Andale knew of the health hazards associated with its asbestos products during the relevant time period and continued selling them without warnings. Accordingly, Plaintiffs meet their burden on summary adjudication. Tate Andale’s motion for summary

adjudication of Plaintiffs' demand for punitive damages is denied.

III.

#### Conclusion

Tate Andale meets its burden to prove that Plaintiffs lack and cannot reasonably obtain evidence to support their claims for false representation and fraudulent concealment and their demand for punitive damages. Plaintiffs fail to present affirmative evidence to support the fraud-based causes of action. Plaintiffs presented sufficient affirmative evidence to support their demand for punitive damages. Tate Andale's motion for summary adjudication is granted as to the causes of action for false representation and concealment. The motion is denied as to the demand for punitive damages.

Tate

Andale to give notice.